

Calendar Line 6**Case Name:** *George Soliman v. Mohammed Bhuiyan et al.***Case No.:** 22CV397671

This is a motion for discretionary relief from default by defendant Mohammed Bhuiyan under Code of Civil Procedure section 473, subdivision (b). The court clerk entered default against Bhuiyan on October 31, 2022, but Bhuiyan did not file the present motion until February 20, 2025, nearly two years and four months later. At the time, he was not represented by counsel, so he is unable to bring a motion for mandatory relief based on attorney error. He is therefore constrained by the unforgiving language of the statute, which states that a motion for discretionary relief “shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc., § 473, subd. (b).)

Plaintiff George Soliman opposes the motion, arguing that two years and four months is well past the statutory deadline. In addition, Soliman emphasizes that Bhuiyan was personally served with the summons and complaint on September 21, 2022, so his claim of lack of notice is not well taken.

The court has no choice but to agree that the motion is untimely, as the six-month time limit is jurisdictional. (See *Rappelyea v. Campbell* (1994) 8 Cal.4th 975, 980-981.) Although the court has the ability in certain circumstances to grant equitable relief upon a showing of extrinsic fraud or mistake (*ibid.*), Bhuiyan has not made such a showing here. In his memorandum, he argues that he “was served with partial and incomplete papers in a manner to confuse him” and “received false information that the matter had been dismissed,” but he does not present any evidence to back up these unexplained allegations—he does not specify exactly what was missing or confusing, and he does not identify how or from whom he received this false information (and exactly what the false information consisted of). (See Declaration of Mohammed Bhuiyan, ¶¶ 4-11.) He claims that he was not served with a request for entry of default, but there are proofs of service in the file, indicating service on October 24, 2022.

The motion is DENIED.

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Calendar Line 7

Case Name: *John Holder et al v. Matthew Westley et al.*

Case No.: 22CV405701

This is a motion for leave to amend the complaint to conform to proof at trial, or alternatively, for leave to file a first amended complaint (“FAC”). Plaintiffs John Holder, Jacqueline Beddingfield, Richard Holder, Robert Holder, Michael Holder, Robert Ramirez, and Roy Scialaba (collectively, “Plaintiffs”) seek to add a cause of action for fraudulent inducement against defendant Matthew Westley. The original complaint, filed on October 14, 2022, asserted only a single cause of action for breach of oral contract. Defendants Matthew Westley and WH Breakfast, Inc. (“WH Breakfast”) (collectively, “Defendants”) oppose the motion.

1. Procedural Background

This case was originally set for trial on April 29, 2024. On April 7, 2024, the court granted the parties’ joint ex parte application to continue the trial date (and all related deadlines), based on the recent service of the summons on defendant WH Breakfast, which had not yet responded to the complaint or otherwise appeared in the case. The court continued the trial to January 6, 2025.

Because of the lack of availability of a civil trial department in this court, the trial was unfortunately unable to go forward on January 6, 2025, and the trial date had to be reset again to July 28, 2025. That is the current trial date, between six and seven weeks from today.

2. Discussion

For the reasons that follow, the court denies the present motion.

Plaintiffs filed this motion on Friday, January 3, 2025, based on the assumption that the trial might begin on Monday, January 6, 2025. Because that did not happen, Plaintiffs’ request to amend the complaint “to conform to proof at trial” is not yet ripe. Without a trial and evidence, there is nothing to “conform to” yet. The court therefore denies that aspect of the motion without prejudice.

As for the request for leave to file an FAC *before* trial, the court finds that the motion is fatally flawed, both procedurally and on the merits.

First, under rule 3.1324(a) of the California Rules of Court, a motion to amend must: “(1) Include a copy of the proposed amendment or amended pleading . . . ; (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.” Here, the January 3, 2025 notice of motion and motion describes the proposed amendments—specifically, the additions of text in paragraphs 9 and 32-37 of the pleading—and then states that “[a] true and correct copy of the First Amended Complaint is attached hereto as Exhibit A.” But no proposed FAC is actually attached to the motion. Without explanation, on May 14, 2025, Plaintiffs filed an “amended” notice of motion that repeats the description of the proposed amendments (the same paragraphs 9 and 32-37) but then attaches a proposed FAC that contains *totally different language* from